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Case Number: 26PSCV00867 Hearing Date: August 17, 2026 Dept: G

Defendant Howard Tse-Ho Hsu's Demurrer to

Plaintiff City of Diamond Bar's Complaint

Respondent:

Plaintiff City of Diamond Bar

Defendant

Howard Tse-Ho Hsu's Motion to Strike Portions of Plaintiff City of Diamond

Bar's Complaint

Respondent:

Plaintiff City of Diamond Bar

TENTATIVE

RULING

Defendant

Howard Tse-Ho Hsu's Demurrer to Plaintiff City of Diamond Bar's Complaint is OVERRULED.

Defendant

Howard Tse-Ho Hsu's Motion to Strike Portions of Plaintiff City of Diamond

Bar's Complaint is DENIED.

Defendant

Howard Tse-Ho Hsu is ORDERED to FILE an ANSWER in ten (10) days.

BACKGROUND

This

is a nuisance abatement action. Defendants

Howard Tse-Ho Hsu and Cecil Tse Hsu (collectively, the Hsus) allegedly own residential real property within the jurisdiction of plaintiff City of Diamond Bar (the

City). Defendants Homebridge Financial

Services, Inc.; Mortgage Electronic Registration Systems, Inc.; and Interfaith

Federal Credit Union each allegedly have a recorded interest in the real property. On September 27, 2023, the

City allegedly inspected the real property from the public right-of-way and

observed a deteriorated wall, outdoor storage of items and debris, a vehicle

encroaching into the public right-of-way, a vehicle parked on an unpaved

surface, poor landscaping, and a commercial vehicle; all of which allegedly

constitute violations of the City's Municipal Code. That same day, the City issued a Courtesy Notice to Correct Violation.

On

October 4, 2023, the City allegedly re-inspected the real property and observed

that the Hsus failed to correct the violations. On October 5, 2023, the City allegedly

informed the Hsus that they needed a zoning clearance to properly address the

violations. On March 18, 2024, the City

allegedly re-inspected the real property and observed that the Hsus failed to

complete the abatement work authorized by the City despite the Hsus obtaining a

zoning clearance. On April 9, 2024, the

City allegedly issued a Civil Citation citing the storage of debris and trash

storage receptacles in public view, maintenance of a deteriorated wall, and

failure to maintain landscaping in proper condition; directing the Hsus to

correct the violations; and ordering the Hsus to pay a fine. On May 9, 2024; June 26, 2024; and September

30, 2024, the City allegedly issued additional Civil Citations citing the same

violations, directing the Hsus to correct the violations, and ordering the Hsus

to pay a fine. Between June 2024 and March

2026, the City allegedly re-inspected the real property nine (9) times and

observed the same violations.

On

March 10, 2026, the City filed the Complaint, alleging causes of action for (1)

maintaining a public nuisance, (2) municipal code violations, and (3) declaratory

and injunctive relief.

On

April 13, 2026, Howard Tse-Ho Hsu filed this demurrer with motion to strike. On May 6, 2026, the City filed the

opposition, and there is no reply. On

May 19, 2026 and July 28, 2026, the court continued the demurrer with motion to strike to allow the parties to properly meet and confer. On July 28, 2026, counsel for Defendants filed a supplemental declaration on the parties' meet and confer efforts.

The

case is set for a case management conference, an order to show cause re: failure to file proof of service, and a continued hearing on the demurrer and motion to strike on August 17, 2026.

DEMURRER

Howard

Tse-Ho Hsu generally demurs to the Complaint based on the failure to state sufficient facts and uncertainty. For the following reasons, the demurrer is OVERRULED.

Legal

Standard

A

party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action."

(Code Civ. Proc., § 430.10, subd. (e).)

A demurrer tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers,

courts accept all well pleaded facts as true.

(Fox v. JAMDAT Mobile, Inc. (2010) 185 Cal.App.4th 1068,

1078.) The court should also draw

reasonable inferences in favor of the pleading subject to demurrer. (Kruss v. Booth (2010) 185 Cal.App.4th

699, 727.) The court should liberally

construe the complaint to bring substantial justice between the parties. (Addiego v. Hill (1965) 238 Cal.App.2d

842, 845.) To sustain a demurrer,

defects must be apparent on the face of the pleading or via proper judicial

notice. (Donabedian v. Mercury Ins.

Co. (2004) 116 Cal.App.4th 968, 994; SKF Farms v. Super. Ct. (1984)

153 Cal.App.3d 902, 905, stating, "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters.

Therefore, it lies only where the defects appear on the face of the

pleading or are judicially noticed.”; Hahn, *supra*, at 747, stating, “The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action.”)

Discussion

Howard

Tse-Ho Hsu argues that the Complaint fails to allege sufficient facts to support a cause of action, and alternatively, that the Complaint is uncertain. The court disagrees.

Uncertainty

A

complaint should be stated with “reasonable precision and with particularity sufficiently specific to acquaint the defendant of the nature, source, and extent” of the plaintiff’s causes of action.

(*Smith v. Kern County Land Co.* (1959) 51 Cal.2d 205, 509.) The matter is one of fairness, namely, to give the defendant adequate notice of what he is alleged to have done to be able to prepare his defense. (*Bauer v. County of Ventura* (1955) 45 Cal.2d 276, 291.)

The

Complaint identifies the subject property as “certain real property located at 771 Bowcreek Drive, Diamond Bar, California.”

(*Compl.*, ¶ 1.) The City further

identifies Howard Tse-Ho Hsu as an “owner” of the property. (*Compl.*, ¶ 3.) Finally, the Complaint alleges that the City already cited Howard Tse-Ho Hsu for a maintaining a deteriorated wall, the outdoor storage of items and debris, vehicle encroachment into the public right-of-way, keeping a vehicle parked on an unpaved surface, and poor landscaping, among other violations. (See *Compl.*, ¶¶ 10–17.) Thus, the court finds the Complaint is not uncertain as to Howard Tse-Ho Hsu.

Therefore,

the demurrer based on uncertainty is **OVERRULED**.

Failure

to State Sufficient Facts

Public

nuisances are “substantial and unreasonable . . . offenses against, or interferences with, the exercise of rights common to the public.” (County of Santa Clara v. Atlantic Richfield Co. (2006) 137 Cal.App.4th 292, 305.) “By ordinance the city legislative body may declare what constitutes a nuisance.”

(Gov. Code, § 38771.) The Diamond

Bar Municipal Code provides that “any condition, use[,] or activity caused or permitted to exist in violation of the provisions of [the Diamond Bar Municipal Code] shall be deemed a public nuisance.”

(Diamond Bar Mun. Code, § 1.04.010, subd. (e).)

As

identified above, the Complaint alleges that the City already cited Howard Tse-Ho Hsu for a maintaining a deteriorated wall, the outdoor storage of items and debris, vehicle encroachment into the public right-of-way, keeping a vehicle parked on an unpaved surface, and poor landscaping, among other violations. (See Compl., ¶¶

10–17.) The Diamond Bar Municipal Code

prohibits these conditions from existing on residential real property. (See Diamond Bar Mun. Code, §§ 10.16.150; 22.34.030.) Accordingly, the court finds

the Complaint does not fail to state sufficient facts for public nuisance and municipal code violations.

Therefore,

the demurrer based on the failure to state sufficient facts is OVERRULED.

MOTION

TO STRIKE

Howard

Tse-Ho Hsu moves to strike the requests for injunctive and declaratory relief from the Complaint. For the following reasons, the motion is DENIED.

Legal

Standard

The

court may, upon a motion, or at any time in its discretion, and upon terms it

deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd.

(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(Code Civ. Proc., § 436, subd. (b).)

The grounds for a motion to strike are that the pleading has irrelevant, false, or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436, subds.

(a)–(b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437, subds.

(a)–(b).)

Discussion

Howard

Tse-Ho Hsu argues that the Complaint includes improper requests for injunctive relief and attorney's fees. The court disagrees.

Injunctive

Relief

"[I]njunctive

relief is a remedy and not, in itself, a cause of action, and a cause of action must exist before injunctive relief can be granted." (Camp v. Bd. of Supervisors (1981) 123 Cal.App.3d 334, 356.)

As

a preliminary matter, the court has found that the Complaint states sufficient facts to support a cause of action, and the City may seek injunctive relief to abate the alleged nuisance. Howard

Tse-Ho Hsu contends that "the requested injunctive relief is impermissibly vague and overbroad." (Dem. with MTS

Brief, p. 5, capitalization changed.) The

court disagrees and finds the specific injunctive relief requested to be sufficiently specific. (See Compl., ¶

26.) In any event, however, it is

premature for the court to determine whether the City may be entitled to

injunctive relief to abate the alleged public nuisance.

Therefore,

the motion to strike the request for injunctive relief is DENIED.

Attorney's

Fees

Attorney's

fees are not recoverable unless provided for by contract or statute. (City of Industry v. Gordon (1972) 29 Cal.App.3d 90, 93.)

The

Diamond Bar Municipal Code provides, "Attorney's fees . . . shall be awarded to

the prevailing party in any action taken by the city to abate a public

nuisance. . . ." (Diamond Bar Mun. Code,

§ 1.04.010, subd. (e).) This case is

explicitly an action by the City to abate a public nuisance. (See Compl., ¶ 1, stating, "This

Complaint is filed by the City of Diamond Bar . . . to abate a public nuisance.") Therefore, the City may properly pray for attorney's

fees in the Complaint.

Accordingly,

the motion to strike the request for attorney's fees is DENIED.

CONCLUSION

Based

on the above analysis, the demurrer is OVERRULED, and the motion to

strike is DENIED.

Defendant

Howard Tse-Ho Hsu is ORDERED to FILE an ANSWER in ten (10)

days.